

Court No. - 29

Case :- WRIT - C No. - 36499 of 2024

Petitioner :- Devendra Nath Dubey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Hari Shankar, Mool Chandra Mishra

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Vivek Kumar Birla, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Heard Sri Mool Chandra Mishra, learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Sri Nitesh Patel, holding brief of Sri Udit Chandra, learned counsel appearing for the respondent- Purvanchal Vidyut Vitaran Nigam Limited.

2. Present petition has been filed for the following reliefs:-

"A. Issue a writ, order or direction in the nature of Certiorari quash the due electricity bill of Rs. 1,48,790/- for the premises of petitioner upto 03.09.2024, called the record and quash the same.

B. Issue a writ, order or direction in the nature of Mandamus commanding/ directing the Respondent no.3 and 4 to make available the due electricity bill for the premises of petitioner, House No.217, Kayasthana, Machhalishahar, Jaunpur.

C. Issue a writ, order or direction in the nature of Mandamus commanding/directing the respondent authority to not disconnect the electric supply of the premises, House No.217, Kayasthana, Machhalishahar, Jaunpur in respect of connection no.0423449000 at present."

3. The petitioner is disputing the correctness of the electricity dues as shown against him.

4. Learned counsel appearing for the Purvanchal Vidyut Vitaran Nigam Limited submits that the petitioner has effective statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and he may file representation/ objection under the aforesaid provision.

5. In such view of the matter, the present petition stands ***disposed of*** with liberty to the petitioner to file representation under the aforesaid provision.

6. It is provided that in case such representation is filed within a period of 15 days from today, the same shall be considered and decided by the respondent no.3 i.e. Executive Engineer Purvanchal Vidyut Vitaran Nigam Limited Vidyut Vitaran Khan-Machhalishahar, Jaunpur on its own merits, preferably within a period of one month from the date of filing of the representation alongwith the certified copy of this order.

7. In the interest of justice, for a period of two months from today or till the disposal of the representation, no coercive action for recovery of the amount shall be made against the petitioner.

8. It is made clear that in case the representation or the objection is not filed within a period of 15 days from today, the protection granted hereinabove to the petitioner shall stand automatically vacated and the authority concerned shall be at liberty to proceed against the petitioner forthwith.

Order Date :- 6.11.2024

Radhika